

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 23, 2026
8:30 AM/1:30 PM

10. KATHRYN MCDONALD V. JOHN MCDONALD

PFL20210430

On February 5, 2026, Respondent filed a Request for Order (RFO) seeking enforcement and clarification of the court's prior orders regarding pediatrician selection.

On February 6, 2026, Respondent filed another RFO seeking child support orders. He did not file his Income and Expense Declaration concurrently with the RFO. Additionally, both RFOs were served electronically in violation of Family Code § 215 which mandates personal service of post-judgment requests.

On February 10th, Respondent filed his Supplemental Declaration in Support of Request for Enforcement and Sanctions. He filed his Income and Expense Declaration on April 6th. Both documents were electronically served on the 6th.

Petitioner filed and served her Income and Expense Declaration on April 3rd. She filed and served a responsive declaration to each of the pending RFOs on April 6th. On April 7th, she filed an Objection to Respondent's Income and Expense Declaration and Request it be Sealed. She filed and served a supplemental declaration on April 10th.

"For all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration." Cal. Rule Ct. 5.260(1); *See also* Cal. Fam. Code §2100. The party requesting support shall file and serve their Income and Expense Declaration with the initial moving papers. El Dorado Sup. Ct. Rule 8.03.01.

Here, Respondent's April 6th Income and Expense Declaration was filed well after the deadline and cannot be considered for purposes of ruling on the RFO. That said, Petitioner's request to file the Income and Expense Declaration under seal is granted. The court finds that the declaration does contain sensitive financial information and as such the clerk of the court is directed to file it in the confidential portion of the court's file. The February 6th RFO is denied without prejudice for failure to file the requisite paperwork.

Regarding the February 5th RFO, it is unclear what exactly Respondent is requesting. The cover sheet states "enforcement and clarification of existing pediatrician selection order" but Respondent fails to specify what exactly he feels is unclear about the prior order and what measures he is requesting the court take in order to enforce the pediatrician selection process. For these reasons, the RFO is denied.

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Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #10: RESPONDENT'S FEBRUARY 5, 2026 RFO IS DENIED DUE TO RESPONDENT'S FAILURE TO SPECIFY THE REQUESTED RELIEF. RESPONDENT'S FEBRUARY 6TH RFO IS DENIED WITHOUT PREJUDICE DUE TO FAILURE TO TIMELY FILE HIS INCOME AND EXPENSE DECLARATION. PETITIONER'S REQUEST TO FILE THE INCOME AND EXPENSE DECLARATION UNDER SEAL IS GRANTED. THE COURT FINDS THAT THE DECLARATION DOES CONTAIN SENSITIVE FINANCIAL INFORMATION AND AS SUCH THE CLERK OF THE COURT IS DIRECTED TO FILE IT IN THE CONFIDENTIAL PORTION OF THE COURT'S FILE.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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11. STUART J. REMINGTON V. BRITTANY J. REMINGTON

24FL0061

On January 23, 2026, Petitioner filed a Request for Order (RFO) seeking spousal support and attorney's fees. He filed a Declaration of Stephen M. Sirota concurrently therewith. Both documents were electronically served on February 2nd. However, Petitioner did not file and serve an Income and Expense Declaration.

Respondent filed her Responsive Declaration to Request for Order and her Income and Expense Declaration on April 2nd. The court has two Proof of Service forms for the Responsive Declaration, but there is no Proof of Service for her Income and Expense Declaration therefore the court cannot consider it.

Petitioner Stuart Reminton's Statement of Support Calculation was filed and served on April 7th along with his Income and Expense Declaration.

"For all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration." Cal. Rule Ct. 5.260(1); *See also* Cal. Fam. Code §2100. The party requesting support shall file and serve their Income and Expense Declaration with the initial moving papers. El Dorado Sup. Ct. Rule 8.03.01. Here, given that Petitioner failed to file his Income and Expense Declaration, the request for support is denied without.

Likewise, Petitioner was required to include an Income and Expense Declaration with his RFO when requesting attorney's fees. Accordingly, that request is also denied without prejudice.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #11: THE RFO IS DENIED WITHOUT PREJUDICE DUE TO FAILURE TO FILE THE REQUISITE PAPERWORK. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO*